

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,

Plaintiff,

v.

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
and ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No. _____

Hon. _____

**PRO SE LITIGANT'S NOTICE OF REQUEST FOR PROCEDURAL
ACCOMMODATION**

Plaintiff Andrew J. Pigors, appearing pro se, respectfully submits this notice and requests that the Court exercise its authority under MCR 1.109(E)(4)(b) to liberally construe pleadings, motions, and supporting documents submitted by a self-represented litigant.

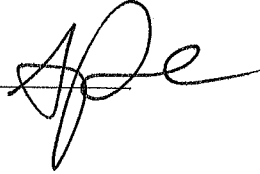
1. Good Faith Filing: All documents in this matter have been prepared, formatted, and filed in sincere good faith, to the best of Plaintiff's ability, without legal counsel and under significant time, financial, and resource constraints.
2. Procedural Compliance Sought: Plaintiff has made extensive efforts to comply with all relevant Michigan Court Rules (MCR), Michigan Compiled Laws (MCL), and formatting standards required in this jurisdiction, including SCAO/MC mandated-use forms, statutory citations, caption structure, and notarized affidavits.
3. Accommodation Requested: In light of Plaintiff's pro se status, indigency, and procedural burdens stemming from complex legal harm and cross-jurisdictional civil issues, Plaintiff requests that:
 - Minor formatting, spacing, or typographical inconsistencies be excused;
 - All filings be evaluated on substantive merit, not strict technical conformity;
 - The Court consider judicial equity in evaluating pro se pleadings under MCR 1.109(E)(4)(b).

4. Constitutional Grounds: This request is also grounded in the right to due process and access to justice under Mich. Const. 1963, art. I, § 17, and U.S. Const. amend. XIV.

5. Scope of Application: This request applies to the entire bundle of filings submitted contemporaneously with this notice, including the Verified Complaint, TRO motions, evidentiary exhibits, and related declarations.

Respectfully submitted,

Date: 6/13/2025

A handwritten signature in black ink, appearing to read 'AJP', written over a horizontal line.

Andrew J. Pigors
1977 Whitehall Rd, Lot 17
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com
Plaintiff, In Pro Per

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

v.

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
and ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No. _____
Hon. _____

NOTICE OF JUSTIFICATION FOR FILING VOLUME

Plaintiff Andrew J. Pigors, appearing in propria persona, respectfully files this Notice of Justification for Filing Volume in compliance with MCR 1.109(C) and MCR 2.113(E), which govern form and length of court filings. Plaintiff affirms that the included materials, while numerous, are necessary to properly present the complex factual and legal issues raised in this litigation.

Plaintiff's filing volume results from:

- The need to document extensive factual history across multiple incidents of landlord misconduct;
- Procedural preservation of distinct legal harms, defenses, and evidentiary foundations;
- Compliance with court-mandated use forms (MC 01, MC 20, MC 230, etc.);
- Required separation of filings per motion type and evidentiary category under MCR and MRE.

Plaintiff respectfully requests that the Court and Clerk's Office accept the volume as procedurally necessary and not intended to burden the Court. Plaintiff is indigent and unrepresented, and is making every effort to comply with formatting, court access protocols, and MCR-mandated filing expectations.

This notice is submitted to assist in docket management, document processing, and judicial review, and to preempt adverse inferences based on filing size.

Filed in good faith this 13th day of June, 2025.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'A. Pigors', with a stylized, cursive script.

Andrew J. Pigors

Lot 17, 1977 Whitehall Road

Muskegon, MI 49445

Email: andrewjpigors@gmail.com | Phone: 231-903-5690

**STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON**

ANDREW J. PIGORS,
Plaintiff,

v.

**SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC, and
ALDEN GLOBAL CAPITAL LLC,**
Defendants.

**Case No.
Hon.**

**VERIFIED COMPLAINT FOR DECLARATORY AND INJUNCTIVE
RELIEF, DAMAGES, AND VIOLATION OF CIVIL RIGHTS**

INTRODUCTION

This is a civil action for declaratory and injunctive relief, compensatory and punitive damages, and enforcement of constitutional and statutory protections. Defendants engaged in a coordinated scheme of unlawful conduct, including but not limited to rent manipulation, environmental neglect, fabrication of financial records, illegal eviction procedures, and the misuse of entity registrations in housing court.

These actions culminated in the forced displacement of Plaintiff Andrew J. Pigors from his lawfully owned home at Lot 17, 1977 Whitehall Road, Muskegon, Michigan, despite full rent payment and while critical health and safety violations persisted. The conduct described herein constitutes violations of:

- **MCL 600.2918 (wrongful eviction)**
- **MCL 554.139 (habitability failures)**
- **MCL 445.903 (consumer fraud)**

- **MCL 125.2301 et seq. (mobile home licensing)**
- **Michigan Constitution, Article I, §§ 2, 17 (equal protection and due process)**
- **42 U.S.C. § 1983 (civil rights deprivation under color of law)**

This Court's equitable powers are invoked to prevent irreparable harm and ongoing statutory violations. No other forum or remedy is adequate under **MCR 2.221**.

I. PARTIES

1. **Plaintiff Andrew J. Pigors** is a resident of Muskegon County and the lawful owner of a manufactured home formerly situated at Lot 17 in Shady Oaks Park.
2. **Defendant Shady Oaks Park MHP LLC** was the licensed operator of the park until it ceased operations without legally recognized succession.
3. **Defendant Homes of America LLC** is a Delaware-registered corporate landlord which assumed control of Shady Oaks operations, issued ledgers, and initiated unlawful eviction proceedings.
4. **Defendant Alden Global Capital LLC** is a private equity firm that controls Homes of America's asset management policies, rent practices, and tenant displacement protocols.

II. JURISDICTION AND VENUE

5. This Court has general equitable jurisdiction pursuant to **MCL 600.605** and the authority to issue injunctive relief under **MCR 3.310**.
6. Venue is proper in Muskegon County under **MCL 600.1621**, as all relevant events and property are located therein.
7. Federal claims under **42 U.S.C. § 1983** are properly before this Court under **MCL 600.101–8411**, with supplemental jurisdiction preserved under **28 U.S.C. § 1367**.

III. FACTUAL ALLEGATIONS

8. Plaintiff lawfully leased a mobile home site from Defendants at a base rent of **\$395/month**.
 9. On or about **March 31, 2024**, Plaintiff was coerced into signing a lease at **Cricklewood MHP**, raising rent to **\$695/month**, under threat of eviction.
 10. No updated lease was provided when rent increased again to **\$720/month** in **April 2025**, in violation of notice and contract law.
 11. Defendants imposed unauthorized fees and inflated utility charges—particularly for trash and water/sewer—in violation of **MCL 125.2328(1)(b)**.
 12. Rent for all months through **December 2024** was fully paid via **MDHHS-CERA assistance**, acknowledged in open court on **April 16, 2025**.
 13. Defendants knowingly fabricated rental arrears, submitted **false ledgers** in court, and listed charges under the name “Shady Oaks Park MHP LLC,” which was no longer a registered operator.
 14. On **May 20, 2025**, water was shut off to Plaintiff’s home without notice while his minor child was present, constituting **constructive eviction**.
 15. From **February to May 2025**, raw sewage remained on Plaintiff’s lot. Despite **EGLE** involvement, no repairs occurred. (*See Exhibit B.*)
 16. On **June 9, 2025**, Defendants forcibly removed Plaintiff, seized his property, and disposed of his home—despite full rent payment and active legal filings—violating **MCL 600.2918** and the **Due Process Clause of the Michigan Constitution**.
-

IV. CAUSES OF ACTION

COUNT I – WRONGFUL EVICTION (MCL 600.2918)

17. Defendants used unlawful means—including utility shutoff, entity misrepresentation, and false documentation—to evict Plaintiff outside judicial process.

COUNT II – BREACH OF IMPLIED WARRANTY OF HABITABILITY (MCL 554.139)

18. Defendants failed to maintain habitable conditions (e.g., sewage, potable water) while continuing to charge rent and fees.

COUNT III – FRAUD / MISREPRESENTATION

19. Defendants knowingly presented falsified rent balances and omitted exculpatory evidence to induce a judicial error.

COUNT IV – PROCEDURAL DUE PROCESS VIOLATION (Art I § 17)

20. Plaintiff was denied fair notice and a meaningful opportunity to be heard, in violation of both state and federal constitutional rights.

COUNT V – CIVIL CONSPIRACY (MCL 600.2925a)

21. Defendants acted in concert to obscure corporate identity, falsify billing records, and unlawfully dispossess Plaintiff.

COUNT VI – CONSUMER PROTECTION ACT VIOLATION (MCL 445.903)

22. Defendants engaged in unfair trade practices by coercing lease execution and omitting material facts regarding charges and operational authority.

COUNT VII – MOBILE HOME COMMISSION ACT VIOLATION (MCL 125.2301 et seq.)

23. Defendants operated the park without a valid license and failed to comply with mandatory safety and disclosure laws.

COUNT VIII – NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

24. Plaintiff and his minor child experienced extreme emotional distress due to raw sewage, abrupt loss of utilities, and forced eviction.

COUNT IX – CONVERSION / TRESPASS TO CHATTEL (MCL 750.362 as civil analog)

25. Defendants damaged, discarded, or wrongfully withheld Plaintiff's personal property during unlawful eviction, without inventory or due process.

COUNT X – VIOLATION OF 42 U.S.C. § 1983

26. Defendants' conduct—facilitated or tolerated by state court actors—deprived Plaintiff of federally protected rights without adequate legal recourse.

V. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Court:

- A. **Declare** Defendants' eviction unlawful and void;
- B. **Issue preliminary and permanent injunctions** barring further dispossession, retaliation, or collection;
- C. **Restore possession or award replacement value** of the home and lost property;
- D. **Award compensatory damages** exceeding **\$25,000** for economic loss and emotional distress;
- E. **Award punitive damages** against all Defendants for willful and malicious conduct;
- F. **Void any alleged arrears** based on falsified ledgers or unlicensed billing;
- G. **Award attorney fees and costs** as authorized by statute or equity;
- H. **Preserve federal claims** pursuant to **42 U.S.C. § 1983** and **28 U.S.C. § 1367**;
- I. **Order production and preservation of evidence** (including water shutoff records, rent ledgers, entity registrations, and communication logs) to prevent spoliation;

J. **Permit amendment of this complaint** under **MCR 2.118(C)** as additional facts become available;

K. **Grant any further relief** this Court deems just and proper.

VI. VERIFICATION UNDER MCR 2.114(B)

I, Andrew J. Pigors, verify under penalty of perjury that the foregoing allegations are true to the best of my knowledge, information, and belief. I acknowledge that sanctions may apply under **MCR 1.109(E)** and **MCR 2.114(D)** if this verification is knowingly false.

Dated: June 12, 2025
Respectfully submitted,

/s/ Andrew J. Pigors
Andrew J. Pigors, Plaintiff In Pro Per
Lot 17, 1977 Whitehall Rd.
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com



**STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON**

ANDREW J. PIGORS,
Plaintiff,

**SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,**
Defendants.

v.

**AFFIDAVIT IN SUPPORT OF VERIFIED COMPLAINT
AND REQUEST FOR INJUNCTIVE RELIEF**

I, Andrew J. Pigors, being duly sworn, depose and state under penalty of perjury pursuant to MCR 2.114(B) and MCL 565.201, that the following statements are true to the best of my knowledge, information, and belief:

1. I am the Plaintiff in the above-captioned matter and a resident of Lot 17, 1977 Whitehall Road, Muskegon, Michigan.
2. I lawfully owned and occupied a manufactured home at the above location within Shady Oaks Park MHP, which was at various times managed or controlled by Defendants Shady Oaks Park MHP LLC, Homes of America LLC, and Alden Global Capital LLC.
3. From 2023 through 2025, I was subjected to escalating rent increases, coerced lease terms, and improper billing practices, including:
 - o Rent increases from \$395 to \$695/month under threat of eviction;
 - o An unconsented increase to \$720/month without a valid lease;
 - o Stacked charges including \$120/month water/sewer, \$18+ trash fees, and bogus "admin fees" without contractual or statutory authority.
4. On April 16, 2025, during proceedings in 60th District Court, the Hon. Maria Ladas Hoopes acknowledged on the record that my MDHHS-CERA rental assistance covered all rent through December 2024.
5. Despite this, Defendants:
 - o Fabricated rent ledgers reflecting non-existent arrears;

- Listed false debts under a defunct corporate name (“Shady Oaks Park MHP LLC”), no longer registered or licensed to operate in Michigan;
 - Initiated eviction proceedings while being legally unlicensed and misrepresenting their standing.
6. On May 20, 2025, while my minor child was home, Defendants unlawfully shut off water to my residence, constituting constructive eviction and creating immediate danger to the child’s health and safety.
 7. Between February and May 2025, untreated sewage remained pooled on my lot. EGLE reports confirm a sewage violation existed during this period, yet no remediation occurred, in breach of Defendants’ duty under MCL 554.139.
 8. On June 9, 2025, I was forcibly removed from my home despite full rent coverage and an active motion to stay eviction. Defendants seized and discarded my personal property without a court-authorized writ, inventory, or opportunity to contest—violating MCL 600.2918 and the Due Process Clause of the Michigan Constitution.
 9. Defendants’ actions were not isolated but part of a systemic pattern of abuse tied to corporate practices by Homes of America LLC and Alden Global Capital LLC in other communities, as detailed in national reports (e.g., Private Equity Stakeholder Project).
 10. I submitted a Verified Complaint containing ten counts including wrongful eviction, fraud, civil rights violations, habitability breaches, and consumer fraud. These claims are supported by sworn documents and Exhibits A–G.
 11. I request the Court grant immediate injunctive relief to prevent further harm, retaliatory acts, or suppression of evidence, and to preserve my federal and state rights under Michigan and U.S. law.
 12. I further affirm that the allegations in the Verified Complaint are made in good faith and not for any improper purpose.

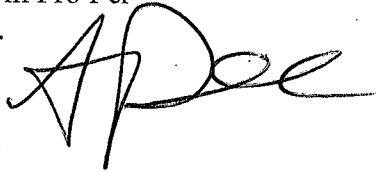
VERIFICATION AND SIGNATURE

I declare under the laws of the State of Michigan that the foregoing is true and correct. This affidavit is submitted pursuant to MCR 2.114(B), MCR 3.310(B), and in further support of the Verified Complaint filed contemporaneously herewith.

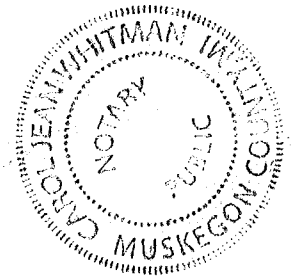
Executed on this 12th day of June, 2025.
Respectfully submitted,

/s/ **Andrew J. Pigors**

Andrew J. Pigors, Plaintiff in Pro Per
Lot 17, 1977 Whitehall Rd.
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com



Carol Jean Whitman
Notary Public, Muskegon County, MI
My Commission Expires April 7, 2030



STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,
Defendants.

v.

Case No.: _____
Hon.: _____

PROPOSED ORDER

**FOLLOWING VERIFIED COMPLAINT FOR DECLARATORY AND INJUNCTIVE
RELIEF, DAMAGES, AND CIVIL RIGHTS VIOLATIONS**

At a session of said Court, held in the County of Muskegon, State of Michigan, on the _____
day of _____, 2025:

PRESENT: Hon. _____, Circuit Court Judge

FINDINGS

Upon review of Plaintiff's Verified Complaint and supporting documentation, the Court finds as follows:

1. Plaintiff has asserted colorable claims under Michigan law and the U.S. Constitution, including but not limited to:
 - Constructive eviction (MCL 600.2918),
 - Breach of habitability (MCL 554.139),
 - Consumer fraud (MCL 445.903),
 - Violation of due process rights under Mich. Const. Art. I § 17 and U.S. Const.

Amend. XIV,

- Federal civil rights violations pursuant to 42 U.S.C. § 1983.
2. Plaintiff has alleged facts sufficient to support injunctive and declaratory relief under MCR 3.310 and MCL 600.5021.
 3. The claims and evidence, including verified exhibits, support a finding that irreparable harm has occurred or will occur without immediate Court oversight and relief.
 4. This interim relief is granted pursuant to the Court's equitable authority under MCR 3.310(A) and MCL 600.6104, pending full adjudication.
-

IT IS HEREBY ORDERED THAT:

A. This matter shall proceed to full hearing on Plaintiff's claims for:

1. Declaratory judgment concerning lease enforceability, entity licensing, utility tampering, and Plaintiff's housing rights;
2. Preliminary and permanent injunctive relief restraining Defendants from unlawful eviction, service disconnection, or billing fraud;
3. Compensatory and punitive damages arising from the violations described in the Verified Complaint;
4. Constitutional enforcement and civil rights adjudication, including the preservation of all federal claims.

B. Defendants are hereby enjoined from taking any further adverse action against Plaintiff related to the facts alleged in the Verified Complaint until such time as a full evidentiary hearing is held and a final ruling issued.

C. A scheduling conference or motion hearing shall be set within 21 days to determine the next appropriate procedural steps under MCR 2.401.

D. Plaintiff shall serve this Order along with the Complaint and supporting documents on all named Defendants in accordance with MCR 2.107(C).

E. Plaintiff's access to utility services and occupancy of Lot 17 shall be preserved and maintained without disruption pending further order of the Court.

F. Plaintiff's rights under Canon 3(C)(1), the Michigan Constitution (Art. I § 17), and the U.S. Constitution (Amend. XIV) are preserved for final adjudication.

G. Any violation of this Order may result in civil contempt sanctions. Defendants may move to dissolve or modify this Order only by written motion and hearing pursuant to MCR 3.310(B)(3).

SO ORDERED.

Date: _____

Hon.
Circuit Court Judge – 14th Judicial Circuit
Muskegon County, Michigan

Prepared by:
Andrew J. Pigors
Lot 17, 1977 Whitehall Road
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,
Defendants.

v.

Case No.:

Hon.:

MOTION FOR EX PARTE TEMPORARY RESTRAINING ORDER

(MCR 3.310(B); Emergency Equitable Relief)

NOW COMES Plaintiff, ANDREW J. PIGORS, in pro per, and respectfully moves this Honorable Court to issue an Ex Parte Temporary Restraining Order pursuant to MCR 3.310(B). In support of this Motion, Plaintiff states:

I. NO NOTICE CERTIFICATION *(MCR 3.310(B)(1)(b))*

Because immediate and irreparable harm will result before a hearing can be held, Plaintiff seeks ex parte relief. Plaintiff certifies that:

- A Verified Affidavit has been submitted under MCR 2.114(B);
- The facts support a finding of imminent injury;

- Plaintiff will serve full notice to Defendants immediately upon entry of emergency relief, and file proof of service accordingly.
-

II. FACTUAL GROUNDS FOR EMERGENCY RELIEF

Plaintiff is the legal owner and resident of a manufactured home located at Lot 17, 1977 Whitehall Road, Muskegon, Michigan, within Shady Oaks Park MHP.

Defendants have committed the following acts:

- **March 26, 2024:** Coerced Plaintiff into signing a lease under threat of eviction;
- **Rent Increases:** Raised rent from \$395 to \$695 to \$720 without valid lease amendments or disclosures;
- **CERA Rejection:** Rejected MDHHS-CERA payments pre-approved through December 2024;
- **May 20, 2025:** Shut off water to Plaintiff's home without notice while a minor child was present;
- **Fabricated Ledgers:** Submitted falsified rent records in court, omitting state-funded rent assistance;
- **Unlicensed Operations:** Continued using the name "Shady Oaks Park MHP LLC" despite lacking a valid license under Michigan law.

These acts violate:

- **MCL 600.2918** (constructive/unlawful eviction);
 - **MCL 600.5720** (retaliation);
 - **MCL 554.139** (habitability failures);
 - **MCL 125.2301 et seq.** (mobile home park licensure);
 - Mich. Const. 1963, Art I §§ 2, 17 (equal protection and due process).
-

III. LEGAL STANDARD — MCR 3.310(B) & EQUITABLE TEST

This request meets the standards set forth in MCR 3.310(B)(1):

- (a) Irreparable harm is imminent and ongoing;
- (b) Emergency relief is needed prior to hearing;
- (c) Verified Affidavit under MCR 2.114(B) is on file.

Plaintiff also satisfies the four-part equitable test set forth in '*Detroit Fire Fighters Ass'n v. City of Detroit*, 482 Mich. 18 (2008)'

1. Likelihood of Success on the Merits – Verified Complaint and Affidavit document fraud, retaliation, and licensing violations;
 2. Irreparable Harm – Plaintiff and minor child lack basic utilities and face imminent eviction;
 3. No Adequate Remedy at Law – Financial compensation cannot restore water, shelter, or safety;
 4. Public Interest – Preventing unauthorized evictions and protecting minors serves compelling policy interests.
-

IV. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

A. Immediately issue an Ex Parte Temporary Restraining Order, enjoining Defendants from:

1. Initiating or continuing any eviction or possession proceeding;
2. Interfering with, restricting, or disconnecting utility services including water and electricity;
3. Contacting, harassing, or surveilling Plaintiff or his minor child;
4. Charging, collecting, or threatening to enforce any rent, fee, or charge unsupported by lawful lease and licensure;

B. Order immediate restoration of all essential utilities to Lot 17;

C. Enjoin any further adverse actions impacting Plaintiff's housing or property status;

D. Preserve the status quo pending a full hearing on a Motion for Preliminary Injunction under **MCR 3.310(A)**;

E. Set a hearing within 14 days as required by **MCR 3.310(B)(2)**;

F. Grant such other relief as is just and equitable.

V. POST-RELIEF NOTICE & SERVICE PLAN

Plaintiff will serve all Defendants with this Motion, the Verified Complaint, Affidavit, and any entered order via certified mail or personal service, and will file Proof of Service (MC 02) as required.

VI. CERTIFICATION UNDER MCR 3.310(B)

Pursuant to **MCR 3.310(B)(1)(b)**, I certify under penalty of perjury:

- That the factual basis for this Motion is verified and submitted;
- That irreparable harm is ongoing and justifies emergency action;
- That I will notify and serve Defendants immediately after any TRO is entered;
- That this request is made in good faith and not for improper purpose.

Dated: June 12, 2025

Respectfully submitted,

/s/ Andrew J. Pigors

Andrew J. Pigors, Plaintiff In Pro Per

Lot 17, 1977 Whitehall Road

Muskegon, MI 49445

(231) 903-5690

andrewjpigors@gmail.com

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

MOTION FOR PRELIMINARY INJUNCTION

(MCR 3.310(A); Hearing-Based Injunctive Relief)

ANDREW J. PIGORS,
Plaintiff,

**SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,**
Defendants.

v.

Case No.:
Hon.

NOW COMES Plaintiff, Andrew J. Pigors, in pro per, and respectfully moves this Honorable Court to enter a Preliminary Injunction pursuant to MCR 3.310(A), and in support of this motion states as follows:

I. PRIOR ACTIONS AND PROCEDURAL HISTORY

1. Plaintiff has previously filed a Verified Complaint, a Verified Affidavit in Support of TRO, and a Motion for Ex Parte Temporary Restraining Order. Those filings were either granted by this Court or remain pending entry.
2. All facts, exhibits, and legal authorities previously presented—including Exhibits A through G—are incorporated by reference as though fully stated herein.
3. This Motion is brought pursuant to MCR 3.310(A)(1) and MCR 3.310(B)(3) to continue emergency protections, establish a hearing-based injunction, and preserve Plaintiff's constitutional and statutory rights through the pendency of this case.

II. FACTUAL BASIS FOR INJUNCTION

4. Plaintiff is the lawful owner and full-time resident of a manufactured home located at Lot 17, 1977 Whitehall Road, Muskegon, MI, within the mobile home park formerly operated by Shady Oaks Park MHP LLC.
5. Defendants have acted jointly and in retaliation, targeting Plaintiff through fabricated ledgers, invalid rent increases, and coercive lease modifications, despite accepting verified MDHHS rental payments through December 2024.
6. On May 20, 2025, Defendants disconnected Plaintiff's water service without notice while a minor child was present in the home, violating MCL 600.2918, MCL 554.139, and MCL 750.552a.
7. Defendants raised rent from \$395 to \$695, then to \$720/month, without written notice or a new lease, violating MCL 600.5716.
8. Defendants continue to transact business under the expired identity of Shady Oaks Park MHP LLC, despite lacking current licensure (see Exhibit F).

III. LEGAL STANDARD

9. Pursuant to MCR 3.310(A) and controlling precedent (*Detroit Fire Fighters Ass'n v. City of Detroit*, 482 Mich. 18 (2008)), a Preliminary Injunction is appropriate where:
 - The movant is likely to succeed on the merits;
 - The movant will suffer irreparable harm absent relief;
 - No adequate remedy at law exists; and
 - The public interest favors the issuance of injunctive relief.
10. Plaintiff satisfies all four prongs of this standard:
 - Plaintiff has presented verified, admissible evidence of fraud, coercion, retaliation, and constitutional violations;
 - Plaintiff is experiencing irreparable harm, including loss of home, exposure of a minor child to hazardous conditions, and continued denial of procedural protections;
 - No adequate legal remedy exists: monetary damages cannot restore a home or replace essential services once terminated;

- The public interest demands enforcement of landlord licensure, protection of vulnerable tenants, and prevention of retaliatory evictions while housing cases remain pending.

IV. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

A. Issue a Preliminary Injunction restraining Defendants from:

- Initiating or continuing any eviction proceedings;
- Disconnecting or interfering with utility services;
- Charging unauthorized rent increases, fees, or utility surcharges;
- Harassing, contacting, or retaliating against Plaintiff or his child;

B. Order restoration of utility services and, where applicable, physical re-possession of Plaintiff's residence;

C. Maintain the status quo until this case is adjudicated on the merits;

D. Schedule a full evidentiary hearing pursuant to MCR 3.310(B)(3) within 14 days of TRO issuance;

E. Grant such other and further relief as this Court deems just and equitable.

Respectfully submitted,

Dated: June 12, 2025

/s/ Andrew J. Pigors
Andrew J. Pigors, Plaintiff In Pro Per
Lot 17, 1977 Whitehall Road
Muskegon, MI 49445
Email: andrewjpigors@gmail.com
Phone: 231-903-5690

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

VERIFIED AFFIDAVIT IN SUPPORT OF
EX PARTE TEMPORARY RESTRAINING ORDER AND PRELIMINARY
INJUNCTION

Andrew J. Pigors, Plaintiff

v.

**Shady Oaks Park MHP LLC, Homes of
America LLC, Alden Global Capital
LLC, Defendants**

Case No.: _____

Hon.: _____

I, Andrew J. Pigors, being duly sworn, depose and state under penalty of perjury pursuant to MCR 2.114(B) as follows:

1. PERSONAL OWNERSHIP + BACKGROUND

I am the legal owner and full-time resident of a manufactured home located at Lot 17, 1977 Whitehall Road, Muskegon, MI 49445, situated within Shady Oaks Park MHP.

My occupancy is lawful, continuous, and previously recognized by both the 60th District Court and MDHHS, which approved and paid rental assistance on my behalf through December 2024.

2. CHRONOLOGY OF HARM AND PROCEDURAL VIOLATIONS

- On March 26, 2024, I was coerced into signing a lease at Cricklewood MHP, a facility 35 minutes away, under the threat of immediate eviction.

This request also satisfies the equitable injunction test under *Detroit Fire Fighters Ass'n v. City of Detroit*, 482 Mich. 18 (2008):

- Likelihood of Success on the Merits: I present verified evidence of regulatory violations, false filings, and retaliation.
- Irreparable Harm: Water has been shut off; utilities are restricted; eviction threats persist.
- No Adequate Remedy at Law: Financial compensation cannot undo home loss or threats to a child's health.
- Public Interest: This matter involves landlord licensing, housing safety, and protection of minors.

This Affidavit is submitted under MCR 3.310(B)(1)(c) and invokes this Court's equitable jurisdiction pursuant to MCL 600.605.

I have been materially prejudiced by lower court suppression of evidence, denial of counterclaim filings, and obstruction of fair hearing access—violating *Goldberg v. Kelly*, 397 U.S. 254 (1970), and *Mathews v. Eldridge*, 424 U.S. 319 (1976).

4. FRAUD, RETALIATION, AND UNLICENSED OPERATION

- Shady Oaks Park MHP LLC is no longer licensed to operate in Michigan yet continues to issue rent demands and ledgers in its name. (*See Exhibit F.*)
- After I reported habitability issues to EGLE, rent was increased and lease terms were manipulated, indicating retaliation in violation of MCL 600.5720 and MCL 554.601a.
- Defendants' conduct violates the Mobile Home Commission Act (MCL 125.2301 et seq.), Consumer Protection Act (MCL 445.903), and the landlord disclosure statute (MCL 125.2328).

5. RELIEF REQUESTED

I respectfully request that the Court:

- Enjoin all eviction actions, utility shutoffs, retaliatory billing, or enforcement of any unlawful lease terms;
- Order immediate restoration of water and essential utilities to my home;
- Prohibit misrepresentation of my tenancy status or arrears in court filings;
- Schedule a hearing on the Preliminary Injunction within 14 days, per MCR 3.310(B)(2);
- Allow amendment of pleadings, submission of additional exhibits, and presentation of evidence without obstruction;
- Require Plaintiff to file a Proof of Service (MC 02) upon entry of any TRO or preliminary order.

6. INCORPORATED EXHIBITS

Exhibit	Description
A	April/May Rent Ledgers showing inflated fees
B	Coerced lease signed at Cricklewood on March 26, 2024
C	Sewage leak photos and documentation (March–May 2025)
D	Rejected \$1,300.26 rent check
E	MDHHS proof of rent coverage through Dec. 2024
F	Shady Oaks LLC license revocation and registration lapse
G	EGLE Complaint filings and regulatory references

7. FEDERAL PRESERVATION NOTICE

This affidavit is submitted in anticipation of federal claims under 42 U.S.C. § 1983 and the Fourteenth Amendment of the U.S. Constitution.

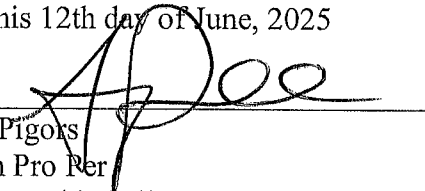
It asserts violations committed under color of state law (*Monroe v. Pape*, 365 U.S. 167 (1961)) and seeks preservation of rights subject to further federal review.

This Affidavit further triggers Canon 3(C)(1)(a) and (c) due to the appearance of judicial bias, suppression of material evidence, and denial of procedural rights required under MCR 2.118, MCR 3.206(A), and MCR 2.119(F).

VERIFICATION

I declare under the laws of the State of Michigan that the foregoing is true and correct to the best of my knowledge, information, and belief.

Executed this 12th day of June, 2025

Signature: 

Andrew J. Pigors

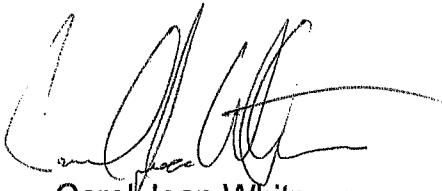
Plaintiff, In Pro Per

Lot 17, 1977 Whitehall Road

Muskegon, MI 49445

Email: andrewjpigors@gmail.com

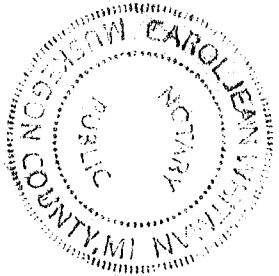
Phone: (231) 903-5690



Carol Jean Whitman

Notary Public, Muskegon County, MI

My Commission Expires April 7, 2030



STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,
Defendants.

v.

Case No.: _____

Hon.: _____

**PROPOSED ORDER FOR EX PARTE TEMPORARY RESTRAINING
ORDER**

(MCR 3.310(B); MCL 600.605; Emergency Equitable Relief)

At a session of said Court, held in the City of Muskegon, County of Muskegon, State of Michigan, on the date below:

PRESENT: Hon. _____,
Circuit Court Judge – 14th Judicial Circuit

FINDINGS OF FACT AND LEGAL BASIS

This matter came before the Court on Plaintiff's verified motion and affidavit, along with Exhibits A–G. The Court, being fully advised in the premises, finds:

1. Plaintiff is the lawful resident and homeowner of Lot 17, 1977 Whitehall Road, Muskegon, MI, located within Shady Oaks Park MHP.
2. Plaintiff submitted admissible, sworn documentation of:

- A utility shutoff on May 20, 2025, while a minor child was present;
- Constructive eviction via falsified ledgers and rejection of verified MDHHS-CERA payments;
- Coerced lease execution under duress on March 26, 2024 at an off-site location;
- Rent increases not memorialized in any valid lease, in violation of MCL 600.5716;
- Active operations by Shady Oaks Park MHP LLC without a valid license, in violation of the Mobile Home Commission Act (MCL 125.2301 et seq.).

3. The Court finds that Plaintiff has no adequate remedy at law, and will suffer irreparable harm absent immediate judicial intervention.
4. Plaintiff has fully complied with MCR 3.310(B)(1)(c) by submitting a Verified Affidavit under penalty of perjury.
5. The Court finds that notice to Defendants is not required pursuant to MCR 3.310(B)(1)(b) due to imminent risk to a minor child and housing stability.
6. The Court further finds that public interest supports the requested relief by protecting tenants, enforcing housing licensure laws, and safeguarding the welfare of a minor.
7. This Court has general equitable authority to issue this Order pursuant to MCL 600.605.

IT IS HEREBY ORDERED THAT:

A. Defendants are immediately restrained and enjoined from:

1. Initiating, continuing, or enforcing any eviction or possession proceedings against Plaintiff;
2. Disconnecting, interfering with, or restricting any utility service to Lot 17, including water, sewer, and electricity;
3. Contacting, threatening, surveilling, or harassing Plaintiff or his minor child;
4. Misrepresenting Plaintiff's tenancy status, payment history, or legal occupancy;
5. Charging, demanding, or collecting any rent, surcharge, or administrative fee not set forth in a valid, written lease agreement.

B. Defendants shall immediately restore all essential utility services, including water, to Plaintiff's home.

C. This Order shall remain in effect until further order of the Court, but shall not exceed 14 days from the date of entry, unless extended per MCR 3.310(B)(2) or converted to a Preliminary Injunction under MCR 3.310(A).

D. A hearing on Plaintiff's Motion for Preliminary Injunction shall be held on or before June 26, 2025, or within 14 days of this Order.

E. Plaintiff shall serve this Order, the Verified Motion, Affidavit, Complaint, and all supporting exhibits on all Defendants via personal service or certified mail, in accordance with MCR 2.107(C). A Proof of Service (MC 02) shall be filed immediately thereafter.

F. Defendants may move to dissolve or modify this Order under MCR 3.310(B)(3). Upon such filing, the Court will promptly set the matter for hearing.

PROTECTIVE & ENFORCEMENT CLAUSES

1. This Order is issued under emergency conditions involving a minor child and housing instability. Violation of any provision may result in civil contempt proceedings under MCR 3.606 and MCL 600.1711, including fines, incarceration, or additional injunctive relief.
2. Plaintiff's housing status, including MDHHS-CERA assistance records, is preserved and protected. No adverse billing, collection, or possession actions may proceed on periods covered by that assistance.
3. This Order is issued without prejudice to Plaintiff's right to seek a Preliminary Injunction under MCR 3.310(A) or to amend relief requests upon newly discovered evidence per MCR 2.118(C).

4. Any documented suppression of evidence, misrepresentation by opposing parties, or judicial deviation from required procedure may constitute grounds for further relief under Canon 3(C)(1) and Article I §§ 2, 17 of the Michigan Constitution.

SO ORDERED.

Date Entered: _____

Time: _____

Hon. _____
Circuit Court Judge
14th Judicial Circuit – Muskegon County

Prepared by:
Andrew J. Pigors, Plaintiff In Pro Per
Lot 17, 1977 Whitehall Road
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Plaintiff,

v.

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC, and
ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No.: _____

Hon.: _____

PROPOSED ORDER GRANTING PRELIMINARY INJUNCTION

*AND SCHEDULING EVIDENTIARY HEARING
(MCR 3.310(A), (B); MCL 600.605)*

At a session of said Court held in the Muskegon County Courthouse
on the _____ day of _____, 2025.

PRESENT: HON. _____, Circuit Court Judge

At a session of said Court held in the Muskegon County Courthouse
on the _____ day of _____, 2025.

PRESENT: HON. _____, Circuit Court Judge

This matter having come before the Court on Plaintiff Andrew J. Pigors's Verified Motion for Preliminary Injunction and Ex Parte Temporary Restraining Order, pursuant to MCR 3.310(A) and MCR 3.310(B); the Court having reviewed the verified pleadings, affidavit, documentary exhibits, and Verified Complaint; and the Court being fully advised in the premises:

THE COURT HEREBY FINDS:

1. Plaintiff has demonstrated a substantial likelihood of success on the merits, based on verified claims of unlawful eviction tactics, regulatory violations, constructive eviction, retaliatory billing, and procedural obstruction.
 2. Plaintiff has established immediate and irreparable harm in the form of water shutoff, hazardous housing conditions, and ongoing threats to housing security and family welfare, with no adequate remedy at law.
 3. The balance of equities favors Plaintiff, and the public interest is served by preventing unlawful landlord conduct and protecting access to utilities and safe housing.
 4. Plaintiff has satisfied all requirements under MCR 3.310(A)(1)–(3) and MCR 3.310(B)(1)–(2), including:
 - Submission of a verified affidavit;
 - Certification of efforts to notify Defendants or sufficient cause why notice should not be required;
 - Demonstrated urgency for injunctive relief.
 5. The Court finds that no bond is required at this time pursuant to MCR 3.310(A)(2), due to Plaintiff's indigency and the public interest exception.
 6. This Order is issued without prejudice to Plaintiff's federal claims under 42 U.S.C. § 1983 and due process protections under *Goldberg v. Kelly*, 397 U.S. 254 (1970), and *Mathews v. Eldridge*, 424 U.S. 319 (1976). Canon 3(C)(1) judicial neutrality is preserved.
-

IT IS HEREBY ORDERED THAT:

A. PRELIMINARY INJUNCTION GRANTED

Defendants and all persons acting in concert with them are hereby RESTRAINED AND ENJOINED from:

- Initiating or continuing any eviction action, summary proceeding, or notice to quit against Plaintiff;

- Disconnecting, terminating, or restricting utility services, including water, sewer, or trash services, at Lot 17, 1977 Whitehall Road, Muskegon, MI 49445;
- Accessing Plaintiff's property or interfering with his tenancy without lawful process or court order;
- Demanding or collecting inflated rent, unauthorized utility charges, or other fees inconsistent with applicable leases, laws, or court orders;
- Using the name "Shady Oaks Park MHP LLC" in communications, filings, or billing if said entity is not properly registered and licensed to operate within the State of Michigan.

Defendants shall restore all essential utilities and services to the subject premises within **twenty-four (24) hours** of service of this Order.

Defendants shall preserve and make available for inspection:

- (1) Rent ledgers;
- (2) Utility bills;
- (3) Eviction notices or ledgers;
- (4) Internal communications regarding Plaintiff's tenancy.

B. EVIDENTIARY HEARING SCHEDULED

Pursuant to MCR 3.310(B)(2), the Court shall conduct an evidentiary hearing to determine whether this Preliminary Injunction shall remain in effect pending resolution of the underlying complaint.

- **Date of Hearing:** _____
 - **Time:** _____
 - **Location:** 14th Circuit Court, Muskegon County Courthouse
 - **Judicial Officer:** _____
-

C. SERVICE AND NOTICE

Plaintiff shall serve a true and correct copy of this Order, together with the Verified Complaint, Affidavit, Motion, and supporting exhibits, on all named Defendants by:

- Personal service; or
- Certified mail with restricted delivery, return receipt requested.

Plaintiff shall file Proof of Service using **MC 02** with the Court no later than **seven (7) days** after entry of this Order. Failure to complete service may result in sua sponte review or modification of relief granted herein.

IT IS SO ORDERED.

Dated: _____

Hon. _____
Circuit Court Judge

Prepared by Andrew J. Pigors

1977 Whitehall Rd Lot 17

Muskegon MI 49445

andrewjpigors@gmail.com 231-903-5690

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

v.

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC, and
ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No. _____
Hon. _____

VERIFIED EXHIBIT INDEX AND RESERVATION OF SUPPLEMENTATION
(Pursuant to MCR 2.113(E), MCR 2.302(G), MRE 1006)

I, Andrew J. Pigors, submit this Verified Exhibit Index pursuant to the Michigan Court Rules and Michigan Rules of Evidence, and declare as follows:

Exhibit	Title / Description	Purpose / Relevance
A	Rent Ledger (January–May 2025)	Shows overbilling, false charges, EGLE period violations
B	Signed Lease Agreement (Cricklewood)	Proves coercive terms, improper renewal
C	Utility Bills (Water, Trash, Sewer)	Demonstrates inflated charges during service outages
D	EGLE Violation Report & Photos	Documents environmental hazards ignored by Defendants
E	Revoked Community	Supports count of

I declare under penalty of perjury pursuant to MCR 2.114(B) and MCL 600.1434 that the above information is true and accurate to the best of my knowledge, and that I will make all exhibits available at the hearing or upon reasonable request.

Executed on this 13th day of June, 2025

Signature: _____

A handwritten signature in black ink, appearing to read 'A. Pigors', written over a horizontal line.

Andrew J. Pigors
1977 Whitehall Rd Lot 17
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

v.

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No. _____

Hon. _____

MOTION FOR JUDICIAL NOTICE OF LARA AND EGLE FACTS

NOW COMES Plaintiff, Andrew J. Pigors, in propria persona, and pursuant to Michigan Rule of Evidence 201(b) and Michigan Court Rule 2.113(C), respectfully moves this Honorable Court to take judicial notice of certain facts regarding the business and regulatory status of the Defendants as reflected in official records of the State of Michigan.

1. Shady Oaks Park MHP LLC is a domestic limited liability company organized under Michigan law on June 13, 2016 (Entity ID E8614F).
2. According to records from the Michigan Department of Licensing and Regulatory Affairs (LARA), Shady Oaks Park MHP LLC last filed its annual report in 2017.
3. Under MCL 450.4207(1) and MCL 450.4802(1), failure to file annual reports for two consecutive years subjects the company to automatic dissolution by operation of law.

4. The LARA documentation included in this case (Exhibit I) demonstrates no filings or updates since 2017, supporting a conclusion of automatic dissolution.
5. Additionally, the Michigan Department of Environment, Great Lakes, and Energy (EGLE) has issued Notice of Violation VN-017235 and other compliance citations against the mobile home park, as detailed in Exhibits B and G.
6. Under MCL 125.2307, no mobile home park may operate in the State of Michigan without valid licensure through EGLE.
7. The above facts are verifiable through official state records, are not subject to reasonable dispute, and their accuracy cannot reasonably be questioned.

These facts are derived from government-maintained public records and are properly subject to judicial notice under MRE 201(b)(2). This Court may take such notice at any stage pursuant to MRE 201(c).

WHEREFORE, Plaintiff respectfully requests that this Court take judicial notice of the corporate dissolution and regulatory noncompliance of Shady Oaks Park MHP LLC, as documented by LARA and EGLE, and deem these facts established for purposes of this proceeding.

Respectfully submitted,

Dated: 10/13/2025

Signature: _____



Andrew J. Pigors, 1977 Whitehall Road Lot 17 Muskegon, MI 49445

(231) 903-5690 | andrewjpigors@gmail.com

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

v.

SHADY OAKS PARK MHP LLC,

HOMES OF AMERICA LLC,
and ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No. _____

Hon. _____

PROPOSED ORDER GRANTING JUDICIAL NOTICE OF EGLE AND LARA
DOCUMENTS

This matter having come before the Court on Plaintiff's Motion for Judicial Notice pursuant to MRE 201(b), MRE 902(5), and MCL 24.208, and the Court being otherwise fully advised in the premises:

IT IS HEREBY ORDERED that:

1. The Court takes judicial notice of the Michigan Department of Environment, Great Lakes, and Energy (EGLE) Violation Notice VN-017235, dated April 15, 2025, including all underlying inspection findings dated March 20, 2025.
2. The Court takes judicial notice of all public records issued by EGLE and LARA relating to Defendants' operations at 1977 Whitehall Road, Lot 17, Muskegon, MI 49445, including but not limited to violation letters, inspection reports, regulatory responses, and wastewater compliance data.
3. These documents are self-authenticating pursuant to MRE 902(5) and qualify as public records under MRE 803(8) and MCL 600.2146.

4. Defendants are precluded from disputing the validity or issuance of these documents absent clear and convincing evidence to the contrary.

5. This Order shall be incorporated into the record in support of any emergency, injunctive, or declaratory relief requested by Plaintiff.

IT IS SO ORDERED.

Date: _____

Judge, 14th Circuit Court

■ SECTION I - CORE PLEADINGS (TRIAL & EMERGENCY RELIEF)

Document Type Legal Purpose

☒ VERIFIED_COMPLAINT_FINAL.docx Civil Complaint Declaratory + Injunctive + Damages Relief

☒ MOTION_TRO_AND_ORDER.docx Emergency Motion

Temporary Restraining Order

☒ PROPOSED_ORDER_TRO.docx Order (Unsigned)

Judge Signature - Immediate Relief

■ SECTION II - SWORN STATEMENTS & DECLARATIONS

Document Affidavit/Declaration Role

☒ 01_STATEMENT_OF_HARM.docx Sworn Narrative Factual grounding + systemic harm

☒ 02_AFFIDAVIT_OF_DAMAGES.docx Itemized Damages Statute-linked claims

totaling \$20,632.14

☒ SWORN_NARRATIVE_SYSTEMIC_HARM_FINAL.docx Affidavit (Exh. I)

Constitutional and public harm basis

■ SECTION III - EXHIBITS (A-I + Addendum Reserved)

Label Description Status

📎 A EGLE Violation Notice (VN-017235) Attached

📎 B Rent Ledgers Showing Overcharges Attached

📎 C Coercive Buyout Email Attached

📎 D Ledger Suppression/No Response Attached

📎 E Shady Oaks Response to EGLE Attached

📎 F Timeline Matrix Attached

📎 G Utility Overbilling (Sewer, Water, Trash) Attached

📎 H Entity Chain Map (Alden→HOA→Shady Oaks) Attached

📎 I Sworn Narrative (Merged as Affidavit + Exhibit) Attached

📎 GG Damages Schedule Summary Sheet Attached

📎 HH-JJ Reserved via 03_ADDENDUM_EXHIBIT_LIST.docx

☒ Legal

placeholder using MRF 1006. MRF 901. MCR 2.302(G)

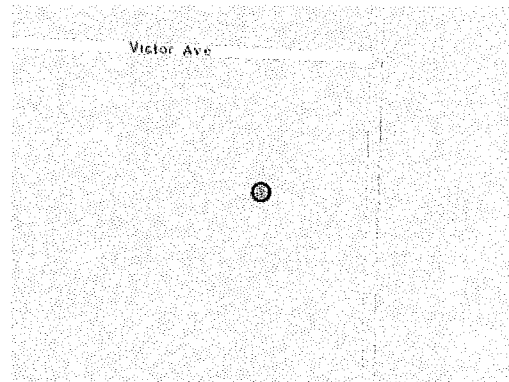
Site Report

Shady Oaks Park MHP



**1977 Whitehall Road
Muskegon, MI 49445**

Basin	Muskegon
County	Muskegon
HUC12	040601021003
HUC8	04060102
TR	10N17W
TRS	10N17W01
TRSQQ	10N17W01NENE



Alternate IDs

Site Number	EN6C-ZRGQ-JQW
-------------	---------------

Environmental Interests

Site Contacts

Shady Oaks Park MHP

1977 Whitehall Road
Muskegon MI 49445

PROFILE

MAP

COMPLIANCE

DOCUMENTS

Evaluations

Total 2

Violations

Total 2

Compliance

Total 1

Total

Determination Date



Program

03/20/2025

NPDES - SSO - Failure to Notify Within 24 Hours

ORIGINATING SYSTEM

NOTES

Program: WRD - NPDES; SSO - Failure to Notify Within 24 Hours; Identifying Evaluation: E-94371; Status: Active – Reviewed/Evaluated

CITATIONS

Statute: SSO - Failure to Notify Within 24 Hours

03/20/2025

NPDES - SSO - Discharge

ORIGINATING SYSTEM

NOTES

Program: WRD - NPDES; SSO - Discharge; Identifying Evaluation: E-94371; Status: Active – Reviewed/Evaluated

CITATIONS

Permit Language: SSO - Discharge

Shady Oaks Park MHP : EN6C-ZRGQ-JQW
Groundwater – Reconnaissance Inspection

Inspector: Connor O'Brien

Start Date: 03/20/2025

Groundwater - Reconnaissance Inspection

1. *Facility Designated Name:* Shady Oaks Park MHP
2. *Permit Number:* NA
3. *Inspection Date:* 03/20/2025
4. *Inspection Purpose/Description:* Complaint/Unpermitted
5. *Inspection Participant Information:*

Participant Name	Title	Affiliation	Phone Number	Email Address
Amanda St.Amour	EQA	WRD-GRDO		
Connor O'Brien	EQA	WRD-GRDO		

6. *Opening Conference Notes:*

A complaint was received from a resident of the mobile home park on or around March 18, 2025. On 3/18 the complainant was contacted for additional information and to be notified that EGLE would be conducting a site visit. The complainant reported an ongoing problem with recurring surfacing sewage from the ground on a vacant lot (lot # 21) across the street from him. He reported that the MHP is connected to municipal sewer and submitted photographs of the pooling effluent.

7. *Observations and Discussion*

Upon site inspection on 3/20/2025, the location appeared to be mostly dry, however, residual signs of pooled sewage effluent were still visible. Contact was made with the complainant and two other neighboring residents, who also mentioned the surfacing sewage, offensive odor, and/or plumbing backups. EGLE staff observed a septic or holding tank on the lot with an unsecured lid. It is likely this holding tank is the cause of the sewage surfacing due to periodic overflows. There were also large trees on the lot that may be causing root intrusion to the tank and its' connected plumbing. One neighbor claimed to be familiar with the design layout of the sewage system servicing the park and described a series of holding tanks and gravity delivery lines that lead to a municipal sewer line outside the park. He stated that based on his observations, the holding tank(s) and sewage system within the park are infrequently serviced.

Areas Evaluated:

- 8a. *Analytical Methodology* Not Applicable
- 8b. *Facility Site Review* Un-Satisfactory
- 8c. *Laboratory* Not Applicable
- 8d. *Operation & Maintenance* Un-Satisfactory
- 8e. *Operator Certification and Facility Classification* Not Applicable
- 8f. *Permit Review* Not Applicable
- 8g. *Records, Submittals and Reporting* Not Applicable
- 8h. *Self-Monitoring Program* Not Applicable

Shady Oaks Park MHP : EN6C-ZRGQ-JQW

Groundwater – Reconnaissance Inspection

Inspector: Connor O'Brien

Start Date: 03/20/2025

Groundwater - Reconnaissance Inspection

8i. Other

Not Applicable

9. Is the facility in compliance with the general discharge standards under Rule 2204 (listed below)? If any standard is not being met, describe in comments.

Rule 2204 Requirement	In Compliance	Not in Compliance
Not currently nor likely to become injurious		X
Does not cause runoff to, ponding on, or flooding of adjacent properties		X
Does not cause erosion	X	
Does not cause nuisance conditions (such as odors, vectors, noise, pathogens, or changes in aesthetic properties of gw)		X
Meets adequate property boundary setbacks*		
Meets water supply well setbacks under the safe drinking water act**		
No evidence that the discharge could create a facility as defined under Part 201		

10. Is the facility in compliance with the general discharge prohibitions under Rule 2205? If either of the two standards is not being met, describe in comments.

Rule 2205 Requirement	In Compliance	Not In Compliance
The facility does not discharge through a general purpose floor drain (unless authorized under 2210(v), 2215, or 2218)		
The discharge does not originate from a structure within 200 feet of an available public sanitary sewer system		

11. Closing Conference Notes:

12. Were photographs taken?

☒ Yes ☐ No

Photographs submitted to EGLE prior to site visit by complainant.

13. Inspection Completed By:

Connor O'Brien

Shady Oaks Park MHP : EN6C-ZRGQ-JQW
Resource - General - Complaint - Site Investigation Report

Inspector: Connor O'Brien

Start Date: 03/20/2025

General Information

Complaint No.

Inspected By:

Connor O'Brien

Date:

03/20/2025

Investigation Findings

Violation of WRD administered statutes or permit conditions?

☒ Yes ☐ No

Parts:

Other

Part 22, R 323.2204 (2)(b)

WRD Permit Issued?

☐ Yes ☒ No

Please fill out the table regarding permits.

Permit No.

Issued

Expires

Construction in Progress?

☐ Yes ☐ No ☒ NA

Equipment on Site?

☐ Yes ☒ No

Construction Completed?

☐ Yes ☐ No ☒ NA

WRD history with property owner?

☐ Yes ☒ No

If yes, permit or complaint?

Permit or Complaint

File No.

WRD history with contractor?

☐ Yes ☒ No

If yes, permit or complaint?

Permit or Complaint

File No.

Apparent purpose of project:

NA

Describe project disturbance and dimensions:

NA

Describe impacts to public health, safety, and natural resources:

Surface pooling of untreated or partially treated sewage within the immediate vicinity of homes

Apparent alternatives to project:

NA

Local or DEQ permits posted on site:

NA

Shady Oaks Park MHP : EN6C-ZRGQ-JQW

Resource - General - Complaint - Site Investigation Report

Inspector: Connor O'Brien

Start Date: 03/20/2025

Investigation Findings

Persons interviewed:

Name	Title	Company
NA		

Evidence taken (photos, plants, soil borings, etc.)

Photos (as submitted by complainant)

WRD Notice of Violation sign posted on site:

☐ Yes ☒ No

Recommendations:

Attachments:

Photos

STATE OF MICHIGAN

14th
JUDICIAL DISTRICT
JUDICIAL CIRCUIT
COUNTY PROBATE

SUMMONS AND COMPLAINT

CASE NO.

Court address

Court telephone no.

990 Terrace St Muskegon MI 49442

231-724-6294

Plaintiff's name(s), address(es), and telephone no(s).

Andrew S. Pigors
1977 Whitehall rd lot 17
Muskegon MI 49445

Defendant's name(s), address(es), and telephone no(s).

Shady Oaks MHP LLC
Homes of America LLC
Aldan Global Capital LLC
1977 Whitehall rd
Muskegon MI 49445

v

Plaintiff's attorney, bar no., address, and telephone no.

SUMMONS**NOTICE TO THE DEFENDANT:** In the name of the people of the State of Michigan you are notified:

1. You are being sued.
2. **YOU HAVE 21 DAYS** after receiving this summons to **file a written answer with the court** and serve a copy on the other party or **take other lawful action with the court** (28 days if you were served by mail or you were served outside this state).
3. If you do not answer or take other action within the time allowed, judgment may be entered against you for the relief demanded in the complaint.

Issued

This summons expires

Court clerk

Family Division Cases (The following is information required in the caption of every complaint and is to be completed by the plaintiff.)

- ☐ This case involves a minor who is under the continuing jurisdiction of another Michigan court. The name of the court, file number, and details are on page ____ of the attached complaint.
- ☐ There is no other pending or resolved action within the jurisdiction of the family division of circuit court involving the family or family members of the parties.
- ☐ An action within the jurisdiction of the family division of the circuit court involving the family or family members of the parties has been previously filed in _____ Court.

The action ☐ remains ☐ is no longer pending. The docket number and the judge assigned to the action are:

Docket no.

Judge

Bar no.

Civil Cases (The following is information required in the caption of every complaint and is to be completed by the plaintiff.)

- ☐ This is a business case in which all or part of the action includes a business or commercial dispute under MCL 600.8035.
- ☒ There is no other pending or resolved civil action arising out of the same transaction or occurrence as alleged in the complaint.
- ☐ A civil action between these parties or other parties arising out of the transaction or occurrence alleged in the complaint has been previously filed in _____ Court.

The action ☐ remains ☐ is no longer pending. The docket number and the judge assigned to the action are:

Docket no.

Judge

Bar no.

VENUE

Plaintiff(s) residence (include city, township, or village)

1977 Whitehall rd lot 17 Muskegon

Defendant(s) residence (include city, township, or village)

1977 Whitehall rd Muskegon

Place where action arose or business conducted

1977 Whitehall rd Muskegon

Date

6/13/2025

Signature of attorney/plaintiff

APC

If you require special accommodations to use the court because of a disability or if you require a foreign language interpreter to help you fully participate in court proceedings, please contact the court immediately to make arrangements.

STATE OF MICHIGAN 14th JUDICIAL DISTRICT JUDICIAL CIRCUIT COUNTY	COMPLAINT Page of pages	CASE NO. and JUDGE
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Court address 990 Terrace St Muskegon MI 49442 Court telephone no. 231-724-6204

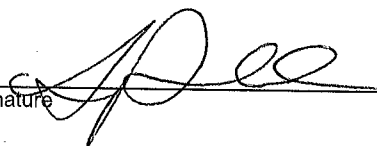
Plaintiff's name, address, and telephone no. Andrew J. Digers 1977 Whitehall rd lot 17 Muskegon MI 49445 231-903-5690
Plaintiff's attorney, bar no., address, and telephone no. Profer

Defendant's name, address, and telephone no. Shady Oaks MHP LLC Homes of America LLC Aldan Global Capital 1977 Whitehall rd Muskegon MI 49445
--

Defendant materially breached a court ordered conditional judgement entered April 16, 2025, Alleging defendants violated through unauthorized rent increases, unlawful water shut offs, May 20 2025, and retaliatory billing during an EGLE Sewage violation.

Shady Oaks is no longer licensed, or is no longer doing business in the state of Michigan as of April, 2025, yet continued to evict charge in its name.

6-12-2025
Date


Signature

PROOF OF SERVICE

SUMMONS AND COMPLAINT

Case No. _____

TO PROCESS SERVER: You are to serve the summons and complaint not later than 91 days from the date of filing or the date of expiration on the order for second summons. You must make and file your return with the court clerk. If you are unable to complete service you must return this original and all copies to the court clerk.

CERTIFICATE / AFFIDAVIT OF SERVICE / NONSERVICE

☐ **OFFICER CERTIFICATE**

OR

☐ **AFFIDAVIT OF PROCESS SERVER**

I certify that I am a sheriff, deputy sheriff, bailiff, appointed court officer, or attorney for a party (MCR 2.104[A][2]), and that: (notarization not required)

Being first duly sworn, I state that I am a legally competent adult who is not a party or an officer of a corporate party, and that: (notarization required)

☐ I served personally a copy of the summons and complaint.

☐ I served by registered or certified mail (copy of return receipt attached) a copy of the summons and complaint, together with _____

List all documents served with the Summons and Complaint

_____ on the defendant(s):

Defendant's name	Complete address(es) of service	Day, date, time

☐ I have personally attempted to serve the summons and complaint, together with any attachments, on the following defendant(s) and have been unable to complete service.

Defendant's name	Complete address(es) of service	Day, date, time

I declare that the statements above are true to the best of my information, knowledge, and belief.

Service fee	Miles traveled	Fee	
\$		\$	
Incorrect address fee	Miles traveled	Fee	TOTAL FEE
\$		\$	\$

Signature _____

Name (type or print) _____

Title _____

Subscribed and sworn to before me on _____, _____ County, Michigan.
Date

My commission expires: _____ Signature: _____
Date Deputy court clerk/Notary public

Notary public, State of Michigan, County of _____

ACKNOWLEDGMENT OF SERVICE

I acknowledge that I have received service of the summons and complaint, together with _____ Attachments

_____ on _____
Day, date, time

Signature _____ on behalf of _____

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

v.

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
and ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No. _____
Hon. _____

NOTICE OF ENTRY OF APPEARANCE (PRO SE)

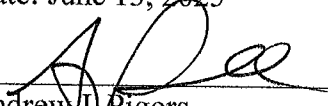
NOW COMES Andrew J. Pigors, appearing in propria persona, and pursuant to MCR 2.117(B)(2)(b), hereby enters his formal appearance as a self-represented litigant in the above-captioned matter.

Pursuant to MCR 2.117, this filing constitutes written notice of appearance and shall serve as sufficient notice to all parties, the Court, and the Clerk's Office of Plaintiff's active participation in the case. All future communications, notices, and service of pleadings shall be directed to the address listed below.

Plaintiff further invokes the protections afforded to self-represented parties under Michigan law, including accommodations as to formatting where appropriate, consistent with MCR 1.109(C) and the access-to-justice principles articulated by the Michigan Supreme Court.

Respectfully submitted,

Date: June 13, 2025



Andrew J. Pigors

Lot 17, 1977 Whitehall Road
Muskegon, MI 49445

andrewjpigors@gmail.com | (231) 903-5690

STATE OF MICHIGAN <i>14th</i> JUDICIAL DISTRICT JUDICIAL CIRCUIT COUNTY	FEE WAIVER REQUEST	CASE NUMBER and JUDGE
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Court address 0700 Terrace St Muskegon MI 49442Court telephone number
231-7246204

Plaintiff/Petitioner's name, address, and telephone number

Andrew J. Pigors
1977 Whitehall Rd lot 17
Muskegon MI 49445

Defendant/Respondent's name, address, and telephone number

Shady Oaks MHP LLC
Homes of America LLC
Aldon Global Capital LLC
1977 Whitehall Rd Muskegon

Plaintiff/Petitioner's attorney, bar number, address, and telephone number

Pro se

Defendant/Respondent's attorney, bar number, address, and telephone number

In the matter of _____

Instructions: Complete this form and file it with the court. If this request is filed by a prisoner, a certified statement of the prisoner's trust account showing a current balance and a 12-month history of deposits and withdrawals must accompany this form. After you receive a decision on your request, you must serve your request and the decision on the other party(ies).

I request a waiver of my filing fees for the following reason: (Check 1, 2, or 3)

- ☒ 1. I receive the following type(s) of public assistance because of indigence:
- ☒ Food Assistance Program through the State of Michigan (also known as FAP or SNAP)
 - ☐ Medicaid (including Healthy Michigan, CHIP, and ESO)
 - ☐ Family Independence Program through the State of Michigan (also known as FIP or TANF)
 - ☐ Women, Infants, and Children benefits (WIC)
 - ☐ Supplemental Security Income through the federal government (SSI)
 - ☐ Other means-tested public assistance: _____

My public assistance case number(s) (if any) is 100514713

Write "none" if no case number. Do not write your Social Security Number

- ☐ 2. I am represented by a legal services program or I receive assistance from a law school clinic because of indigence. The name of the legal services program or law school clinic is _____

- ☐ 3. I am unable to pay the fees and I did not check item 1 or 2 above.

My gross household income is \$ 318 every two weeksThe number of people in my household is 1 Week/Two weeks/Month/YearMy source of income is Employment

List assets and their worth, such as bank accounts. If you need more space, attach a separate sheet.

car 2000phone 65Insurances - 700Electric - 75Home - 18,000Rent 720Cable/internet - 20Gas - 50

List obligations and how much you pay, such as rent or other debts. If you need more space, attach a separate sheet.

I declare under the penalties of perjury that this request has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

Date

6-13-25

Signature

[Signature]

CLERK WAIVER

1. Payment of filing fees is waived.

Signature of court clerk and date

IT IS ORDERED:

ORDER

- ☐ 1. Payment of filing fees is waived because:
- ☐ a. Your gross household income is under 125% of the federal poverty guidelines.
 - ☐ b. Your gross household income is above 125% of the federal poverty guidelines, but payment of the fees would constitute a financial hardship for you.
 - ☐ c. Other:

If you become able to pay the fees before this case is resolved, you must notify the court.

- ☐ 2. The fee waiver request is denied because:
- ☐ a. Your gross household income is above 125% of the federal poverty guidelines and payment of the fees would not constitute a financial hardship for you
 - ☐ b. Other:

Judge/Magistrate (when authorized) signature and date

NOTICE

IF YOUR REQUEST WAS DENIED: To continue your case and preserve your filing date, you have 14 days from the issue date below to pay the filing fees or request a review. To request a review, fill out a Request for Review of Denied Fee Waiver (form MC 114) and file it with the court.

Issue date (completed by clerk)